

Saltmarsh Environmental Partners LLC

www.saltmarshenv.com

March 10, 2021

Robert Lopez
Director of Operations
Solis, Allen and Oconnell

Re: Stormwater permit support

Dear Mr. Lopez:

This letter sets out the terms on which Saltmarsh Environmental Partners LLC will provide stormwater permitting support to Solis, Allen and Oconnell. It follows our walk of the yard with your maintenance lead and the drainage sheets your office sent afterward. If the terms below match your understanding, please countersign where indicated and return one copy for our file.

Scope and Approach

The engagement covers the permit work needed to bring the site under coverage of the general permit for stormwater discharges associated with industrial activity, and to keep it there through the first monitoring cycle. We will begin with a site characterization: a walkover of the drainage area in wet conditions if we can get them, identification of each outfall, and a description of the industrial activities and the materials exposed to precipitation upstream of each one. Your existing site plans and any prior sampling records will be reviewed against what we find in the field. Where the two disagree, the field observation governs and the discrepancy gets written down rather than reconciled quietly.

From that characterization we will prepare a Stormwater Pollution Prevention Plan for the site: the site map, the pollutant source assessment, the control measures assigned to each source, the inspection schedule, and the monitoring schedule the permit requires. We will draft the Notice of Intent and its attachments for your signature and respond to the agency's completeness review if one is issued.

We will also stand up the sampling program. That means sample locations tied to the identified outfalls, containers and hold times appropriate to each analyte, chain of custody from the point of collection to the bench, and a laboratory subcontract for the analytical work. Our field staff will collect the first round themselves. They will

then train your personnel to perform the routine visual assessments, because the permit assigns those to the operator and they will be your obligation long after we are off the site.

The deliverables are:

- Site characterization memorandum with the outfall inventory and a marked-up drainage map.
- Stormwater Pollution Prevention Plan, in draft for your review and then final.
- Notice of Intent and supporting attachments, prepared for signature by your authorized representative.
- First round of stormwater sampling, with laboratory reports and a short data summary.
- A half-day training session for your staff on visual assessments, inspections, and recordkeeping.

Two limits are worth stating plainly at the outset. We are not retained to design or construct structural controls. Where the assessment indicates one is warranted we will say so and describe what it has to accomplish, and the design is a separate matter on separate terms. Second, we cannot warrant the agency's schedule. Our estimate assumes a complete submittal and an ordinary review. A request for additional information will move the end of this work by whatever the response requires, and it is not unusual for one to be issued.

Project Team

I will serve as principal in charge and will review every deliverable before it leaves this office. Heather Morton will lead the field work and the sampling program and will be your day-to-day contact for site access and scheduling. Joseph Nichols will support the characterization, the outfall inventory, and the documentation that travels with the plan. The three of us are the entire team. We do not subcontract field work, and the people who collect the data are the people who write about it.

Client Responsibilities

We will need site access on reasonable notice, including during and shortly after qualifying rain events, which are not always convenient. We will also need your existing drainage and utility plans, material inventories and safety data sheets for what is stored outdoors, records of past spills or releases, and any prior correspondence with the agency about this site. Our schedule and our fee assume this material is available in the first weeks and that a person on your staff can answer questions about site operations. If the records are thin, tell us now rather

than later; we can work from field observation, but it costs more time and the plan is weaker for it.

Fee and Schedule

Our fee for the scope described above is a fixed sum of \$110,500, covering field labor, plan and permit preparation, one round of sampling, the training session, and one round of agency correspondence. Work will begin on March 20, 2021, subject to site access, and we have reserved field time accordingly. We expect roughly four months from that point to a complete submittal and a first monitoring round in hand, subject to the qualification about agency review above.

Fees and Payment

We invoice monthly against progress, with the fixed fee allocated across the deliverables listed above. Invoices are due thirty days from the date of issue. Laboratory charges are passed through at cost and appear as separate line items with the laboratory's invoice attached, so you can see what you are paying for. Work outside the scope above will not be performed without your written authorization and will be billed at our hourly rates then in effect.

Term and Termination

The engagement begins on the start date given above and continues until the deliverables are complete or either of us ends it. Either party may terminate on fourteen days' written notice. On termination you will owe us for work performed and commitments made through the effective date, including laboratory analyses already underway, and we will deliver the field data and draft materials in whatever state they are in. We do not hold work product hostage to an unpaid balance when a compliance deadline is running. If you are in arrears we will tell you so, and we will still hand you your data.

Confidentiality

We will treat site information, analytical results, and business information you provide as confidential, and will not disclose them except to our own staff and the laboratory performing the analysis. Two exceptions apply and neither is negotiable. Where a permit condition, a regulation, or a lawful order requires disclosure, we will disclose, and we will notify you beforehand if we are permitted to. Information already public, or known to us independently before this engagement, is not covered. You should also assume that what is submitted to the agency under a permit becomes a public record in due course.

Limitation of Liability

Our total liability arising out of this engagement, whether in contract, in tort, or otherwise, is limited to the fee stated above, and we are not liable for consequential, incidental, or indirect damages, including lost profits, fines, or delay costs. This limit survives termination. Our conclusions rest on conditions observed at the sample locations on the dates sampled and on the information you and your records supply. We do not warrant that conditions are uniform across the site or constant over time, and we do not warrant the outcome of the agency's review. A professional opinion here is an opinion, and we will not represent it as more than that.

Governing Law

This letter is governed by the law of the state in which the site is located, without regard to its conflict of laws provisions. This letter and its attachments are the entire agreement between us on this subject and supersede prior discussions and proposals. It may be amended only in writing signed by both parties.

If the foregoing reflects your understanding, please sign below and return one copy to this office. We will schedule the first walkover on receipt. Questions about the scope should come to me directly.

Sincerely,

Angela Flynn

Managing Principal

Date: March 10, 2021

Robert Lopez

Director of Operations, Solis, Allen and Oconnell

Date: March 10, 2021